TREATIES
BETWEEN THE
REPUBLIC OF CHINA
AND
FOREIGN STATES
(1927—1957)

中外條約輯編
（中華民國十六年至四十六年）

外交部編

MINISTRY OF FOREIGN AFFAIRS

1958

上開辦法，倘荷
貴國政府同意，中日雙方應即按照規定自民國二十五年十一月十五日起同日適用施行。
相應照請
貴大使查照並見復為荷。

本部長頃向
貴大使重表敬意。

此致

日本帝國駐中華民國特命全權大使川越閣下

中華民國二十五年十一月五日

（日使覆照係日文，內容與此照相同。）

TREATY OF PEACE BETWEEN THE REPUBLIC OF CHINA AND JAPAN

Signed on April 28, 1952;
Ratifications exchanged on August 5, 1952;
Entered into force on August 5, 1952.

The Republic of China and Japan,

Considering their mutual desire for good neighborliness in view of their historical and cultural ties and geographical proximity;

Realizing the importance of their close cooperation to the promotion of their common welfare and to the maintenance of international peace and security;

Recognizing the need of a settlement of problems that have arisen as a result of the existence of a state of war between them;

Have resolved to conclude a Treaty of Peace and have accordingly appointed as their Plenipotentiaries,

His Excellency the President of the Republic of China:

Mr. Yeh Kung Chao;

The Government of Japan:

Mr. Isao Kawada;

Who, having communicated to each other their full powers, found to be in good and due form, have agreed upon the following articles:

ARTICLE I

The state of war between the Republic of China and Japan is terminated as from the date on which the present Treaty enters into force.

中華民國與日本國間和平條約

四十一年四月二十八日簽訂
四十一年八月五日互換批准書
四十一年八月五日生效

中華民國與日本國

鑒於兩國由於其歷史文化關係及領土鄰近而產生之相互睦鄰願望；

了解兩國之密切合作對於增進其共同福利及維持世界和平與安全，均屬重要；

均認由於兩國間戰爭狀態之存在而引起之各項問題，亟待解決；

爰經決定締結和平條約，並為此各派全權代表如左：

中華民國總統閣下：

葉公超先生；

日本國政府：

河田烈先生；

各該全權代表經將其所奉全權證書提出互相校閱，認為均屬妥善，爰議定條款如左：

第 一 條

中華民國與日本國間之戰爭狀態，自本約發生效力之日起，即告終止。

ARTICLE II

It is recognized that under Article 2 of the Treaty of Peace with Japan signed at the city of San Francisco in the United States of America on September 8, 1951 (hereinafter referred to as the San Francisco Treaty), Japan has renounced all right, title and claim to Taiwan (Formosa) and Penghu (the Pescadores) as well as the Spratly Islands and the Paracel Islands.

第 二 條

茲承認依照公曆一千九百五十一年九月八日在美利堅合衆國金山市簽訂之對日和平條約（以下簡稱金山和約）第二條，日本國業已放棄對於臺灣及澎湖羣島以及南沙羣島及西沙羣島之一切權利、權利名義與要求。

ARTICLE III

The disposition of property of Japan and of its nationals in Taiwan (Formosa) and Penghu (the Pescadores), and their claims, including debts, against the authorities of the Republic of China in Taiwan (Formosa) and Penghu (the Pescadores) and the resident thereof, and the disposition in Japan of property of such authorities and residents and their claims, including debts, against Japan and its nationals, shall be the subject of special arrangements between the Government of the Republic of China and the Government of Japan. The terms nationals and residents whenever used in the present Treaty include juridical persons.

第 三 條

關於日本國及其國民在臺灣及澎湖之財產及其對於在臺灣及澎湖之中華民國當局及居民所作要求（包括債權在內）之處置，及該中華民國當局及居民在日本國之財產及其對於日本國及日本國國民所作要求（包括債權在內）之處置，應由中華民國政府與日本國政府間另商特別處理辦法。本約任何條款所用「國民」及「居民」等名詞，均包括法人在內。

ARTICLE IV

It is recognized that all treaties, conventions and agreements concluded before December 9, 1941, between China and Japan have become null and void as a consequence of the war.

第 四 條

茲承認中國與日本國間在中華民國三十年即公曆一千九百四十一年十二月九日以前所締結之一切條約、專約及協定，均因戰爭結果而歸無效。

ARTICLE V

It is recognized that under the provisions of Article 10 of the San Francisco Treaty, Japan has renounced all special rights and interests in China, including all benefits and privileges resulting from the provisions of the final Protocol signed at Peking on September 7, 1901, and all annexes, notes and documents supplementary thereto, and has agreed to the abrogation in respect to Japan of the said protocol, annexes, notes and documents.

第 五 條

茲承認依照金山和約第十條之規定，日本國業已放棄在中國之一切特殊權利及利益，包括由於中華民國紀元前十一年即公曆一千九百零一年九月七日在北京簽訂之最後議定書與一切附件及補充之各換文暨文件所產生之一切利益與特權；並已同意就關於日本國方面廢除該議定書、附件、換文及文件。

ARTICLE VI

(a) The Republic of China and Japan will be guided by the principles of Article 2 of the Charter of the United Nations in their mutual relations.

(b) The Republic of China and Japan will cooperate in accordance with the principles of the Charter of the United Nations and, in particular, will promote their common welfare through friendly cooperation in the economic field.

第 六 條

（甲）中華民國與日本國在其相互之關係上，願各遵聯合國憲章第二條之各項原則

（乙）中華民國與日本國願依聯合國憲章之原則彼此合作，並特願經由經濟方面之友好合作，促進兩國之共同福利。

ARTICLE VII

The Republic of China and Japan will endeavor to conclude, as soon as possible, a treaty or agreement to place their trading, maritime and other commercial relations on a stable and friendly basis.

第 七 條

中華民國與日本國願儘速商訂一項條約或協定，藉以將兩國貿易、航業及其他商務關係，置於穩定與友好之基礎上。

ARTICLE VIII

The Republic of China and Japan will endeavor to conclude, as soon as possible, an agreement relating to civil air transport.

第 八 條

中華民國與日本國願儘速商訂一項關於民用航空運輸之協定。

ARTICLE IX

The Republic of China and Japan will endeavor to conclude, as soon as possible, an agreement providing for the regulation or limitation of fishing and the conservation and development of fisheries on the high seas.

第 九 條

中華民國與日本國願儘速締結一項爲規範或限制捕魚、及保存暨開發公海漁業之協定。

ARTICLE X

For the purposes of the present Treaty, nationals of the Republic of China shall be deemed to include all the inhabitants and former inhabitants of Taiwan (Formosa) and Penghu (the Pescadores) and their descendants who are of the Chinese nationality in accordance with the laws and regulations which have been or may hereafter be enforced by the Republic of China in Taiwan (Formosa) and Penghu (the Pescadores); and juridical persons of the Republic of China shall be deemed to include all those registered under the laws and regulations which have been or may hereafter be enforced by the Republic of China in Taiwan (Formosa) and Penghu (the Pescadores).

第 十 條

就本約而言，中華民國國民應認爲包括依照中華民國在臺灣及澎湖所已施行或將來可能施行之法律規章而具有中國國籍之一切臺灣及澎湖居民及前屬臺灣及澎湖之居民及其後裔；中華民國法人應認爲包括依照中華民國在臺灣及澎湖所已施行或將來可能施行之法律規章所登記之一切法人。

ARTICLE XI

Unless otherwise provided for in the present Treaty and the documents supplementary thereto, any problem arising between the Republic of China and Japan as a result of the existence of a state of war shall be settled in accordance with the relevant provisions of the San Francisco Treaty.

第 十 一 條

除本約及其補充文件另有規定外，凡在中華民國與日本國間因戰爭狀態存在之結果而引起之任何問題，均應依照金山和約之有關規定予以解決。

ARTICLE XII

Any dispute that may arise out of the interpretation or application of the present Treaty shall be settled by negotiation or by other pacific means.

第 十 二 條

凡因本約之解釋或適用可能發生之任何爭執，應以磋商或其他和平方式解決之。

ARTICLE XIII

The present Treaty shall be ratified and the instruments of ratification shall be exchanged at Taipei

第 十 三 條

本約應予批准，批准文件應儘速在臺北互換。本約應自批准文件

as soon as possible. The present Treaty shall enter into force as from the date on which such instruments of ratification are exchanged.

互換之日起發生效力。

ARTICLE XIV

第十四條

The present Treaty shall be in the Chinese, Japanese and English languages. In case of any divergence of interpretation, the English text shall prevail.

本約應分繕中文、日文及英文。遇有解釋不同，應以英文本爲準。

IN WITNESS WHEREOF, the respective Plenipotentiaries have signed the present Treaty and have affixed thereto their seals.

爲此，雙方全權代表各於本約簽字蓋印，以昭信守。

DONE in duplicate at Taipei, this Twenty Eighth day of the Fourth month of the Forty First year of the Republic of China corresponding to the Twenty Eighth day of the Fourth month of the Twenty Seventh year of Showa of Japan and to the Twenty Eighth day of April in the year One Thousand Nine Hundred and Fifty Two.

本約共繕二份，於中華民國四十一年四月二十八日即日本國昭和二十七年四月二十八日即公曆一千九百五十二年四月二十八日訂於臺北。

For the Republic of China: Yeh Kung Chao

中華民國代表：葉公超 （蓋印）

For Japan: Isao Kawada

日本國代表：河田烈 （蓋印）

PROTOCOL

議定書

At the moment of signing this day the Treaty of Peace between the Republic of China and Japan (hereinafter referred to as the present Treaty), the undersigned Plenipotentiaries have agreed upon the following terms which shall constitute an integral part of the present Treaty:

署名於後之雙方全權代表，於本日簽署中華民國與日本國間和平條約（以下簡稱本約）時，議定左列各條款，各該條款應構成本約內容之一部分，計開：

1. The application of Article XI of the present Treaty shall be subject to the following understandings:

（一）本約第十一條之實施，應以下列各項了解爲準：

(a) Wherever a period is stipulated in the San Francisco Treaty during which Japan assumes an obligation or undertaking, such period shall, in respect of any part of the territories of the Republic of China, commence immediately when the present Treaty becomes applicable to such part of the territories.

（甲）凡在金山和約內有對日本國所負義務或承擔而規定時期者，該項時期，對於中華民國領土之任一地區而言，應於本條約一經適用於該領土之該地區之時，開始計算。

(b) As a sign of magnanimity and good will towards the Japanese people, the Republic of China voluntarily waives the benefit of the services to be made available by Japan pursuant to Article 14 (a) 1 of the San Francisco Treaty.

（乙）爲對日本人民表示寬大與友好之意起見，中華民國自動放棄根據金山和約第十四條甲項第一款日本國所應供應之服務之利益。

(c) Articles 11 and 18 of the San Francisco Treaty shall be excluded from the operation of Article XI of the present Treaty.

（丙）金山和約第十一條及第十八條不在本約第十一條實施範圍之內。

2. The commerce and navigation between the Republic of China and Japan shall be governed by the following Arrangements:

（二）中華民國與日本國間之商務及航業應以下列辦法爲準繩：

(a) Each Party will mutually accord to nationals, products and vessels of the other Party:

（甲）雙方將相互以左列待遇給予對方之國民、產品及船舶：

(i) Most-favored-nation treatment with respect to customs duties, charges, restrictions and other regulations on or in connection with the importation and exportation of goods; and

（子）關於關稅、規費、限制及其他施行於貨物之進口及出口或與其有關之規章，給予最惠國待遇；及

(ii) Most-favored-nation treatment with respect to shipping, navigation and imported goods, and with respect to natural and juridical persons and their interests—such treatment to include all matters pertaining to the levying and collection of taxes, access to the courts, the making and performance of contracts, rights to property (including those relating to intangible property and excluding those with respect to mining), participation in juridical entities, and generally the conduct of all kinds of business and professional activities with the exception of financial (including insurance) activities and those reserved by either Party exclusively to its nationals.

（丑）關於船運、航行及進口貨物，及關於自然人與法人及其利益，給予最惠國待遇；該項待遇包括關於徵收稅捐、起訴及應訴、訂立及執行契約、財產權（包括無形財產權但鑛業權除外）參加法人團體、及通常關於除金融（包括保險）業及任何一方專爲其國民所保留之各種職業活動以外之各種商業及職業活動行爲之一切事項。

(b) Whenever the grant of most-favored-nation treatment by either Party to the other Party, concerning rights to property, participation in juridical entities and conduct of business and professional activities, as specified in sub-paragraph (a) (ii) of this paragraph, amounts in effect to the grant of national treatment, such Party shall not be obligated to grant more favorable treatment than that granted by the other Party under most-favored-nation treatment.

（乙）關於本項(甲)款(丑)節所載之財產權、參加法人團體及商業及職業活動之行爲，凡遇任何一方所給予彼方之最惠國待遇，在事實上臻於國民待遇之程度時，則該方對於彼方並無給與較諸彼方依照最惠國待遇所給待遇更高待遇之義務。

(c) External purchases and sales of government trading enterprises shall be based solely on commercial considerations.

（丙）國營貿易企業之對外購買及出售，應僅以商務考慮爲基礎。

(d) In the application of the present Arrangements, it is understood:

(i) that vessels of the Republic of China shall be deemed to include all those registered under the laws and regulations which have been or may hereafter be enforced by the Republic of China in Taiwan (Formosa) and Penghu (the Pescadores); and products of the Republic of China shall be deemed to include all those originating in Taiwan (Formosa) and Penghu (the Pescadores); and

(ii) that a discriminatory measure shall not be considered to derogate from the grant of treatments prescribed above, if such measure is based on an exception customarily provided for in the commercial treaties of the Party applying it, or on the need to safeguard that Party's external financial position or balance of payments (except in respect to shipping and navigation), or on the need to maintain its essential security interests, and provided such measure is proportionate to the circumstances and not applied in an arbitrary or unreasonable manner.

The Arrangements set forth in this paragraph shall remain in force for a period of one year as from the date on which the present Treaty enters into force.

DONE in duplicate at Taipei, this Twenty Eighth day of the Fourth month of the Forty First year of the Republic of China corresponding to the Twenty Eighth day of the Fourth month of the Twenty Seventh year of Showa of Japan and to the Twenty Eighth day of April in the year One Thousand Nine Hundred and Fifty Two.

(Signed) Yeh Kung Chao

(Signed) Isao Kawada

（丁）在適用本辦法時，雙方了解：

（子）中華民國之船舶應認爲包括依照中華民國在臺灣及澎湖所已施行或將來可能施行之法律規章所登記之一切船舶；中華民國之產品應認爲包括發源於臺灣及澎湖之一切產品；及

（丑）如某項差別待遇辦法係基於適用該項辦法一方之商約中所通常規定之一項例外，或基於保障該方之對外財政地位，或收支平衡之需要（除涉及船運及航行者外），或基於其保持其主要安全利益，又如該項辦法係隨情勢推移，且不以獨斷或不合理之方式適用者，則該項差別待遇辦法不得視爲對於以上規定所應給予之各待遇有所減損。

本項所規定之辦法應自本約生效之日起一年之期限內繼續有效。

本議定書共繕二份，於中華民國四十一年四月二十八日即日本國昭和二十七年四月二十八日即公曆一千九百五十二年四月二十八日訂於臺北。

葉公超 （簽字）

河田烈 （簽字）

EXCHANGE OF NOTES

(I) Note from the Japanese Plenipotentiary to the Chinese Plenipotentiary

No. 1.

Taipei, April 28, 1952

Excellency,

In regard to the Treaty of Peace between Japan and the Republic of China signed this day, I have the honor to refer, on behalf of my Government, to the understanding reached between us that the terms of the present Treaty shall, in respect of the Republic of China, be applicable to all the territories which are now, or which may hereafter be, under the control of its Government.

I shall be appreciative, if you will confirm the understanding set forth above.

I avail myself of this opportunity to convey to Your Excellency the assurance of my highest consideration.

(Signed) Isao Kawada

His Excellency
Monsieur Yeh Kung Chao,
Plenipotentiary of the Republic of China.

(II) Note from the Chinese Plenipotentiary to the Japanese Plenipotentiary

No. 1.

Taipei, April 28, 1952

Excellency,

In connection with the Treaty of Peace between the Republic of China and Japan signed this day, I have the honor to acknowledge receipt of Your Excellency's Note of to-day's date reading as follows:

"In regard to the Treaty of Peace between Japan and the Republic of China signed this day, I have the honor to refer, on behalf of my Government, to the understanding reached between us that the terms of the present Treaty shall, in respect of the Republic of China, be applicable to all the territories which are now, or which may hereafter be, under the control of its Government.

換 文

（一）日本國全權代表致中華民國全權代表照會譯文

照 會 第一號

關於本日簽訂之日本國與中華民國間和平條約，本代表謹代表本國政府提及貴我雙方所成立之了解，即：本約各條款，關於中華民國之一方，應適用於現在在中華民國政府控制下或將來在其控制下之全部領土。

上述了解，如荷
貴代表惠予證實，本代表當深感紉。

本代表順向
貴代表表示崇高之敬意。

此致

中華民國全權代表葉公超閣下

河田烈 （簽字）

昭和二十七年四月二十八日於臺北

（二）中華民國全權代表覆日本國全權代表照會

照 會 第一號

關於本日簽訂之中華民國與日本國間和平條約，頃准
貴代表本日照會內開：

「關於本日簽訂之日本國與中華民國間和平條約，本代表謹代表本國政府提及貴我雙方所成立之了解，即：本約各條款，關於中華民國之一方，應適用於現在在中華民國政府控制下或將來在其控制下之全部領土。

"I shall be appreciative, if you will confirm the understanding set forth above."

I have the honor to confirm, on behalf of my Government, the understanding set forth in Your Excellency's Note under reply.

I avail myself of this opportunity to convey to Your Excellency the assurance of my highest consideration.

(Signed) Yeh Kung Chao

His Excellency
Mr. Isao Kawada,
Plenipotentiary of Japan.

上述了解，如荷
貴代表惠予證實，本代表當深感紉
。」

本代表謹代表本國政府證實
貴代表來照所述之了解。

本代表順向
貴代表表示崇高之敬意。

此致

日本國全權代表河田烈閣下

葉公超 （簽字）

中華民國四十一年四月二十八日
於臺北

(III) Note from the Chinese Plenipotentiary to the Japanese Plenipotentiary

（三）中華民國全權代表致
日本國全權代表照會

No. 2.

照 會 第二號

Taipei, April, 28, 1952

Excellency,

I have the honor to state that it is the understanding of my Government that pending the conclusion of the agreement envisaged in Article VIII of the Treaty of Peace between the Republic of China and Japan signed this day, the relevant provisions of the San Francisco Treaty shall apply.

I have the honor to request that Your Excellency will be so good as to confirm that this is also the understanding of the Government of Japan.

I avail myself of this opportunity to renew to Your Excellency the assurance of my highest consideration.

(Signed) Yeh Kung Chao

His Excellency
Mr. Isao Kawada,
Plenipotentiary of Japan.

本代表茲謹聲述，本國政府了
解：在本日簽署之中華民國與日本
國間和平條約第八條所規定之協定
未締結以前，金山和約之相關規定
應予適用。

本代表謹請
貴代表惠予證實：此亦係日本國政
府之了解。

本代表順向
貴代表重表崇高之敬意。

此致

日本國全權代表河田烈閣下

葉公超 （簽字）

中華民國四十一年四月二十八日
於台北

(IV) Note from the Japanese Plenipotentiary to the Chinese Plenipotentiary

（四）日本國全權代表覆中華民國全權代表照會譯文

No. 2.

照　會　第二號

Taipei, April 28, 1952

Excellency,

In connection with the Treaty of Peace between Japan and the Republic of China signed this day, I have the honor to acknowledge receipt of Your Excellency's Note of to-day's date reading as follows:

關於本日簽訂之日本國與中華民國間和平條約，頃准
貴代表本日照會內開：

"I have the honor to state that it is the understanding of my Government that pending the conclusion of the agreement envisaged in Article VIII of the Treaty of Peace between the Republic of China and Japan signed this day, the relevant provisions of the San Francisco Treaty shall apply.

「本代表茲謹聲述，本國政府了解：在本日簽署之中華民國與日本國間和平條約第八條所規定之協定未締結以前，金山和約之相關規定應予適用。

"I have the honor to request that Your Excellency will be so good as to confirm that this is also the understanding of the Government of Japan."

本代表謹請
貴代表惠予證實：此亦係日本國政府之了解。」

I have the honor to confirm that this is also the understanding of the Government of Japan.

本代表謹證實此亦係日本國政府之了解。

I avail myself of this opportunity to extend to Your Excellency the assurance of my highest consideration.

本代表順向
貴代表重表崇高之敬意。

此致

(Signed) Isao Kawada

河田烈　（簽字）

His Excellency
Monsieur Yeh Kung Chao,
Plenipotentiary of the Republic of China.

中華民國全權代表葉公超閣下

昭和二十七年四月二十八日於臺北

AGREED MINUTES

同意紀錄

I.

（壹）

Chinese Delegate:

中華民國全權代表：

It is my understanding that the expression "or which may hereafter be" in the Notes No. 1 exchanged to-day can be taken to mean "and which may hereafter be." Is it so?

『本人了解：本日第一號換文中所用「或將來在其……」等字樣，可認爲具有「及將來在其……」之意。是否如此？』

Japanese Delegate:

日本國全權代表：

Yes, it is so. I assure you that the Treaty is applicable to all the territories under the control of the Government of the Republic of China.

『然，確係如此。本人確告
貴代表：本約係對於中華民國政府所控制之全部領土，概予實施。』

II.

Chinese Delegate:

It is my understanding that the property, rights or interests in Japan of the collaborationist regimes created in China, as a result of the so-called "Mukden incident" of September 18, 1931, such as "Manchukuo" and the "Wang Ching Wei regime," shall be transferable to the Republic of China upon agreement between the two Parties in accordance with the relevant provisions of the present Treaty and of the San Francisco Treaty. Is it so?

Japanese Delegate:

It is so.

III.

Chinese Delegate:

I understand that nothing in the provisions under Article 14 (a) 2 (II) (ii) of the San Francisco Treaty shall be construed to extend any exceptions to the real property, furniture and fixtures used by such set-ups as were established since September 18, 1931 without the concurrence of the Republic of China and were once claimed to be diplomatic or consular set-ups of the Japanese Government in China and the personal furniture and furnishings and other private property used by the personnel of such set-ups. Is it so?

Japanese Delegate:

It is so.

IV.

Japanese Delegate:

It is my understanding that since the Republic of China has voluntarily waived the service compensation as stated in paragraph 1 (b) of the Protocol of the present Treaty, the only benefit that remains to be extended to her under Article 14 (a) of the San Francisco Treaty is Japan's external assets as stipulated in Article 14 (a) 2 of the same Treaty. Is it so?

Chinese Delegate:

Yes, it is so.

(Signed) Yeh Kung Chao

(Signed) Isao Kawada

（貳）

中華民國全權代表：

『本人了解：凡因中華民國二十年即公曆一千九百三十一年九月十八日所謂「瀋陽事變」之結果而在中國組設之僞政權，如「滿洲國」及「汪精衛政權」，其在日本國之財產，權利或利益，應於雙方依照本約及金山和約有關規定成立協議後移交與中華民國。是否如此？』

日本國全權代表：

『確係如此。』

（叁）

中華民國全權代表：

『本人了解：金山和約第十四條甲項第二款(二)(丑)內之任何規定，不得解釋爲對於自中華民國二十年即公曆一千九百三十一年九月十八日以來未經中華民國政府同意而曾一度自稱爲日本國政府在中國之外交或領事機構所使用之不動產、傢具及裝備及各該機構人員所使用之傢具設備及其他私人財產，予以除外，是否如此？』

日本國全權代表：

『確係如此。』

（肆）

日本國全權代表：

『本人了解：中華民國既已如本約議定書第(一)項(乙)款所述自動放棄服務補償，則根據金山和約第十四條甲項之規定日本國尚須給予中華民國之唯一利益，即爲該約第十四條甲項第二款所規定之日本國在其本國外之資產。是否如此？』

中華民國全權代表：

『然，即係如此。』

葉公超 （簽字）

河田烈 （簽字）